Syllabus

# RICO *v.* UNITED STATES

## CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT

No. 24–1056. Argued November 3, 2025—Decided March 25, 2026

A criminal defendant, on supervised release from federal prison, must comply with various conditions—both mandatory (commit no more crimes, see 18 U. S. C. § 3583(d)) and discretionary (commonly, "report to a probation officer as directed" and "notify the probation officer promptly of any change in address," §§ 3563(b)(15), (17)). Violating a prescribed condition may result in the revocation of supervised release and a return to prison, § 3583(e)(3), as well as an additional "term of supervised release after imprisonment," § 3583(h).

After petitioner Isabel Rico violated the terms of her supervised release conditions, the judge revoked her release and ordered her to serve two months of additional imprisonment and a new 42-month term of supervised release set to expire in 2021. When released the second time, Ms. Rico again violated her conditions by changing her residence without notifying her probation officer. A warrant issued for her arrest, but federal authorities did not locate her until January 2023. As relevant here, during her abscondment, Ms. Rico committed a state law drug offense in January 2022, which resulted in a conviction. Back in federal district court, the judge treated Ms. Rico's drug offense as a Grade A violation of her supervised release conditions and sentenced her to 16 months of incarceration followed by two more years of supervised release. Ms. Rico appealed, arguing that the district court lacked authority to treat her drug offense as a supervised release violation because that offense occurred after her supervised term expired in June 2021. The Ninth Circuit disagreed, describing Ms. Rico's abscondment as having "tolled" the clock so that her term continued to run until federal authorities caught up with her in 2023. Because of that, the Ninth Circuit held, Ms. Rico's January 2022 drug offense could count as a violation of her federal supervised release. This Court granted certiorari to resolve a circuit split on whether abscondment automatically extends a term of supervised release.

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*Held*: The Sentencing Reform Act does not authorize a rule automatically extending a defendant's term of supervised release when the defendant absconds. Pp. 614–623.

(a) What the Ninth Circuit's challenged rule really does is use a defendant's abscondment to *extend* (not *toll*) the period of supervised re-

lease beyond what a judge has ordered. Automatically extending a term of supervised release is not among the many tools the Sentencing Reform Act provides courts to address defendants who fail to report or otherwise violate their supervised release conditions. The Act instructs that a term of supervised release starts "the day the person is released from imprisonment," § 3624(e), and generally sets maximum lengths at one, three, or five years depending on the severity of the underlying offense, § 3583(b). Neither provision hints at an automatic extension rule, and the Ninth Circuit's rule risks permitting courts to extend supervised release beyond the statutory maximums set by Congress. The Act also authorizes courts to revoke supervised release and impose additional imprisonment and supervised release for violations, but makes no mention of automatic extension for abscondment. Further, an automatic extension rule disregards the limits in the Act's specific extension and tolling rules. Section 3583(e)(2) generally permits courts to extend supervised release only after holding a hearing and considering various sentencing factors, and not beyond statutory maximums or after the term has expired. Section 3583(i) allows revocation proceedings after a defendant's term of supervised release has expired only for matters arising before expiration and only if a warrant or summons issued during the term. Section 3624(e) provides a true tolling rule, suspending supervised release during imprisonment of 30 consecutive days or more. The cumulative detail of these instructions strongly suggests the absence of anything like the Ninth Circuit's rule is intentional rather than an oversight. Pp. 615–617.

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(b) The government's arguments fail to support the Ninth Circuit's rule. The government argues because supervision requires "observation and direction," see, *e. g.*, §§ 3601, 3624(e), 3603(2), (3), and Ms. Rico received neither while absconding, she should receive no "credit" for that period. But the cited provisions merely describe the probation officer's duties and indicate that supervision occurs only "during the term imposed" by the sentencing court, §§ 3601, 3624(e), which hurts rather than helps the government's cause. Moreover, the government's theory treats Ms. Rico as off and on supervised release at the same time.

The government's precedent arguments are also unconvincing. *Mont* v. *United States*, 587 U. S. 514, simply recognized that § 3624(e)'s express terms suspend a defendant's term during imprisonment for a separate state offense, which highlights the absence of anything like the Ninth Circuit's rule. And *United States* v. *Johnson*, 529 U. S. 53, rejected an effort to adorn the Act with a rule Congress did not enact, much as the Court does today.

The government's common-law argument—that courts historically held an escaped time on the run from prison does not count toward

discharge of a sentence—may rest on sound premises but reaches an unsound conclusion. The government seeks not a rule that stops the clock or ensures a defendant takes no advantage of abscondment, but one that imposes new punishment by automatically extending supervised release. Unlike an escaped prisoner who is not serving his sentence, under the Ninth Circuit's rule, a defendant who fails to report remains bound by release terms and may be punished for violations. The Act already provides many ways to ensure defendants do not profit from violations without automatically extending the period beyond what a judge ordered. Pp. 617–622.

(c) The government's policy plea—that § 3583(i)'s warrant-or-summons requirement may leave courts powerless when probation officers do not timely realize a defendant's absence—is misdirected. The proper place to register that complaint is with Congress, as this Court is not free to rewrite the directions Congress has provided. P. 621–622.

Reversed and remanded.

GORSUCH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, SOTOMAYOR, KAGAN, KAVANAUGH, BARRETT, and JACKSON, JJ., joined. ALITO, J., filed a dissenting opinion, *post*, p. 623.

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*Adam G. Unikowsky* argued the cause for petitioner. With him on the briefs were *Jonathan J. Marshall*, *Margaret A. Farrand*, and *Andrew B. Talai*.

*Joshua K. Handell* argued the cause for the United States. With him on the brief were *Solicitor General Sauer*, *Acting Assistant Attorney General Galeotti*, *Deputy Solicitor General Feigin*, and *W. Connor Winn*.*

JUSTICE GORSUCH delivered the opinion of the Court.

Today, most criminal defendants sentenced to federal prison must also serve a term of supervised release. If a defendant on supervised release fails to report to his proba-

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*Briefs of *amici curiae* urging reversal were filed for the Due Process Institute by *Vincent J. Brunkow* and *Shana-Tara O'Toole*; for the National Association of Federal Defenders by *Jacob Schuman*, *Paul Alessio Mezzina*, and *Keith M. Donoghue*; and for the Roderick and Solange MacArthur Justice Center by *Devi M. Rao*.

*Adeel M. Bashir* and *Jeffrey L. Fisher* filed a brief of *amicus curiae* for the National Association of Criminal Defense Lawyers.